REPUBLIC OF THE PHILIPPINES
PROVINCE OF BATANGAS
MUNICIPALITY OF TUY

OFFICE OF THE SANGGUNIANG BAYAN

EXCERPT FROM THE MINUTES OF THE 79th REGULAR SESSION OF THE SANGGUNIANG BAYAN OF TUY, BATANGAS HELD AT THE MUNICIPAL SESSION HALL ON APRIL 16, 2024

PRESENT:

HON. MICHAEL O. PEREZ,	ACTING MUNICIPAL VICE MAYOR, PRESIDING OFFICER,
Hon. Randoll I. Catapang,	Municipal Councilor,
Hon. Rafael C. Bautista,	Municipal Councilor.
Hon. Reymundo C. Rodriguez,	Municipal Councilor,
Hon. Aniceto C. Abiad,	Municipal Councilor,
Hon. Felisa C. Rivera,	Municipal Councilor,
Hon. Eduardo P. Afable Jr.,	Municipal Councilor,
Hon. Ly-ann Angeline D. Avena,	Ex-Officio Member, SK Federation President.

ABSENT:

Hon. Adrian C. Perez,	Municipal Councilor,
Hon. Roberto A. Mendoza	Ex-Officio Member, ABC President.

RESOLUTION No. 2024 - 068

A RESOLUTION APPROVING ORDINANCE NO. 008: "AN ORDINANCE APPROVING THE INSTALLATION, FIXING AND MAINTENANCE OF FIRE HYDRANTS IN TUY, BATANGAS"

WHEREAS, the 1987 Constitution of the Republic of the Philippines declares that the State shall promote the general welfare or the common good of all the people;

WHEREAS, the Local Government Code of 1991 (Republic Act No. 7160) accords every local government unit power and authority to promote the general welfare within its territorial jurisdiction, including the safety of its constituents;

WHEREAS, Republic Act No. 9514 known as the "Fire Code of the Philippines" regulates the installation and spacing conversion between hydrants;

WHEREAS, the Local Government of Tuy, Batangas must act with urgency to protect the lives of the people in case of fire especially in areas where fire trucks are unable to navigate due to narrow roads;

WHEREAS, an increasing number of Filipinos die due to fire each year;

WHEREAS, some of the villages and subdivisions do not have sufficient fire hydrants within their area;

WHEREAS, millions of properties are affected in such cases wherein fire are not expeditiously extinguished.

NOW, **THEREFORE**, on motion of Hon. Randoll I. Catapang and duly seconded by Hon. Reymundo C. Rodriguez, the following resolution was approved.

ORDINANCE NO. 008

AN ORDINANCE APPROVING THE INSTALLATION, FIXING AND MAINTENANCE OF FIRE HYDRANTS IN TUY, BATANGAS

Be it ordained by the Municipality of Tuy, Batangas in regular session assembled:

SECTION 1: Title. This Ordinance shall be known as the "Fire Hydrant Ordinance of Tuy, Batangas".

SECTION 2: Purpose. It is the purpose of this Ordinance to:

a. safeguard the public, ensure quick response in case of fire to the areas affected;

b. lessen damages to properties caused by fire.

SECTION 3. Implementing Office. The Local Government Unit, through the supervision of the Municipal Engineering Office (MEO), the Municipal Planning and Development Coordinator's (MPDC) Office, and the Bureau of Fire Prevention (BFP), and the coordination with the Sangguniang Barangay, is mandated to implement the provisions of this Ordinance.

SECTION 4. Implementation. The following provisions in the implementation of this Ordinance must be strictly observed.

a. **The Role of the Local Government Unit (LGU).** The MEO and BFP shall check each public road in Tuy, Batangas if it has a sufficient number of fire hydrants and if the source of water can provide the needed requirement for a fire truck. In case of insufficiency, the MEO and BFP shall provide fire hydrants and cisterns or elevated tanks that will suffice the requirement pertaining to provision of water for fire fighting operation as necessary. In the event that there is an existing fire hydrant in the area, the said office shall ensure that the fire hydrant is in good working condition.

b. **Barangay Involvement.** The LGU shall coordinate with the barangay in providing fire hydrants for sitios and/or compounds with numerous houses that cannot be penetrated by fire trucks.

c. **Barangay Water Systems.** All water systems in the barangay shall have water hydrants. The LGU, through the Municipal Engineering Office, shall provide funds for the installation of water hydrants.

d. **The Role of the President of the Homeowners Association and/or Subdivision Owners/Developers.** The President of the Homeowners Association and/or Subdivision Owners/Developers of all villages and subdivisions shall make sure that streets within their area of responsibility have sufficient number of fire hydrants, with a minimum distance of not exceeding to 250 meters, develop the source of water

used for the purpose of providing adequate water supply for the suppression use on both economic and socialized housing in connection with this Ordinance, especially on roads which prevents fire trucks to pass through due to its width. In case of insufficiency of fire hydrants, the Homeowners Association, through their President, shall provide such as necessary. However, if there are existing fire hydrants, they shall ensure that the fire hydrants are in good working condition and shall serve its purpose if needed.

In case the villages and subdivisions fail to comply with above-mentioned paragraph, the Homeowners Association shall be given a first notice ordering that they shall comply with this ordinance. In case, they still fail to comply with the first notice, a final notice, the Homeowners Association shall be penalized, applying Section 6 of this ordinance.

e. **Poultry Farms.** All poultry farms shall provide their own water hydrants. The water hydrants shall be placed in front of the said business establishment for easy access of fire trucks in case of fire and other emergencies. For poultry farms with elevated water tanks, there shall be gate bulb where water hose can be attached to the fire trucks.

f. **Other Business Establishment.** Other business establishment like solar farm, resorts, etc. shall provide their own water hydrant in front of the said establishment.

g. **Issuance of Permits/Clearances.** Providing fire hydrants is one of the requirements of BFP before issuing a clearance. The Business Permit and Licensing Office (BPLO) will check all villages and subdivisions if they have fire hydrants in good working condition before issuing the permit to operate.

h. **Water Supply.** The Tuy Water District (TWD) is required to provide the water supply or the 20% of its water supply for fire hydrants and reserved for the fire department. In addition, the water system under TWD located in areas with numerous concessionaires shall provide higher pressure in their water supply for easy access to fill fire trucks from the installed water hydrants. There shall be a Memorandum of Agreement (MOA) between the LGU and TWD for the implementation of this provision.

SECTION 5. Budget. The Local Government Unit (LGU) shall fund the implementation of this Ordinance.

SECTION 6. Penalty. Any village/subdivision, developers, and/or other business establishment which fails to comply with this Ordinance after the second and final warning shall be fined Two Thousand Five Hundred Pesos (PHP 2,500.00).

SECTION 7. Applicability. This Ordinance shall be applicable within the jurisdiction of Tuy, Batangas.

SECTION 8. Repealing Clause. All ordinances, resolutions, local executive orders, rules and regulations or any part thereof which are inconsistent with any of the provisions of this Ordinance are hereby repealed, modified or amended.

SECTION 9. Separability Clause. If any of the provisions of this Ordinance is declared unconstitutional or invalid by a competent court, the other provisions hereof shall continue to be in full force and effect.

SECTION 10. Effectivity Clause. This Ordinance shall take effect fifteen (15) days after its publication in a newspaper of general circulation.

ENACTED, this 16th day of April, 2024 at Tuy, Batangas.

I hereby certify that this is true and accurate copy of ordinance approved by the Sangguniang Bayan on April 16, 2024.

MERLINDA P. MENDOZA
SB Secretary

Attested by:

MICHAEL O. PEREZ
Municipal Councilor
Presiding Officer, Pro-Tempore

Approved by:

JOSE JECERELL C. CERRADO
Municipal Mayor